

Jaiminiben Nitinbhai Darji D/O ... vs Nitin Bharatbhai Darji on 1 September, 2025

Author: A.Y. Kogje

Bench: A.Y. Kogje

C/FA/74/2025

JUDGMENT

IN THE HIGH COURT OF GUJARAT AT AHMEDABAD

R/FIRST APPEAL NO. 74 of 2025
With
CIVIL APPLICATION (FOR STAY) NO. 1 of 2024
In
R/FIRST APPEAL NO. 74 of 2025

FOR APPROVAL AND SIGNATURE:

HONOURABLE MR. JUSTICE A.Y. KOGJE
and
HONOURABLE MR.JUSTICE N.S.SANJAY GOWDA

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Approved for Reporting

Yes

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JAIMINIBEN NITINBHAI DARJI D/O BHOGILAL KANTILAL DARJI
Versus
NITIN BHARATBHAI DARJI

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Appearance:

MR MIHIRKUMAR R DARJI(11213) for the Appellant(s) No. 1
MR HARNISH V DARJI(3705) for the Defendant(s) No. 1

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CORAM:HONOURABLE MR. JUSTICE A.Y. KOGJE
and
HONOURABLE MR.JUSTICE N.S.SANJAY GOWDA

Date : 01/09/2025

ORAL JUDGMENT

(PER : HONOURABLE MR.JUSTICE N.S.SANJAY GOWDA)

1. ADMIT. Learned advocate Mr. Harnish V. Darji waives service of admission for and on behalf of the respondent.

2. The appellant-wife is in appeal being aggrieved by the decree granted by the Family Court, by which her marriage, which had been solemnized on 6.2.2007, is NEUTRAL CITATION C/FA/74/2025 JUDGMENT DATED: 01/09/2025 undefined ordered to be dissolved on the ground that the husband had proved that he had been treated cruelly.

3. It is admitted that the parties to this appeal got married on 6.2.2007 at Mehsana and out of this wedlock, they have two children, named Heet and Jay.

(1) The respondent husband pleaded that he was working in ICICI Bank at Pune whereas his wife was also employed at Opera school in North Gujarat. He stated that since they were working at different places, they did not reside together as husband and wife.

(2) The respondent husband stated that in October 2007, in order to live together as husband and wife, he resigned from his Post at ICICI Bank and joined at Kotak Mahindra Bank at Surat and his wife had voluntarily resigned from her employment at Opera School and they started living together as husband and wife at Surat.

(3) The respondent husband stated that they relocated to Ahmedabad in July 2010. He stated that thereafter the attitude of the wife changed and she started ill-treating him. He stated that the wife threatened to commit suicide and she made repeated threats in this regard to him as also to his family.

(4) The respondent husband stated that the appellant wife also filed false complaints on 15.6.2018 and 1.7.2018 to the police.

NEUTRAL CITATION C/FA/74/2025 JUDGMENT DATED: 01/09/2025 undefined (5) The respondent husband admitted that a compromise was reached and as a consequence thereof, the wife withdrew the complaints that she had filed to the police.

(6) The respondent husband pleaded that the appellant- wife was constantly provoked by his father-in-law and the other family members and as a result of which, she was humiliating him and had in fact, assaulted him on 1.7.2018.

(7) The respondent husband contended that the appellant-wife did not prepare meals and compelled him to bring meals from outside, which had an adverse effect on his health as well as on the health of his children.

(8) The respondent husband also pleaded that the appellant wife had humiliated him numerous times in his office as well as in front of the members of the society and she never allowed his parents to enter at their house and the wife had forced him to live separately from his parents.

(9) The respondent husband also stated that the wife was demanding Rs.80 lacs for not making false allegations against him and she also threatened him to kill if her financial demands were not fulfilled. This kind of constant demands led him to submit resignation from NEUTRAL CITATION C/FA/74/2025 JUDGMENT DATED: 01/09/2025 undefined his job 27.6.2018 and since then, he was treated with cruelty and thus, he was entitled for decree of dissolution of marriage.

(10) The wife entered appearance and denied all the contentions advanced by the respondent husband. She stated that she had never deserted the husband, on the contrary the husband had deserted her and her husband and his family members were only interested in dowry that she could secure and from the beginning of the marriage, they were taunting and harassing her and she was forced to quit her job at Opera school and she had done so with a hope that she would have a better married life.

(11) The appellant wife stated when the the husband was working at PNB Housing, his behaviour and attitude of her husband changed, and he started treating her cruelly. She also alleged that her husband did not return home till late night, and he used to organize parties at distant farm-houses with his friends and he used to return home drunk and in his drunken state, he abused her physically. She stated that when the husband went to Mehsana to cast his vote, she expressed her willingness to accompany him, but he reacted aggressively and brutally and assaulted her.

(12) The appellant wife stated that on his return from NEUTRAL CITATION C/FA/74/2025 JUDGMENT DATED: 01/09/2025 undefined Mehsana on that day, at the instigation of her in-laws, he once again physically abused her severely on her face. She also narrated various other incidents of the husband having treated her with cruelty.

4. The husband examined himself and also two other witnesses and produced several documents. The wife examined herself and did not produce any documentary evidence.

5. The Family Court after considering the contentions advanced by the parties, observed as follows:-

"22. The petitioner has alleged several acts of cruelty by the respondent, which have caused him immense mental and physical distress. The specific allegations of cruelty include:

The petitioner states that the respondent frequently quarrelled with him without justifiable cause, made false and defamatory allegations against him, and publicly humiliated him. It is further alleged that on one occasion, the respondent threw her mangalsutra at him, which is a serious disrespect to the sanctity of the marriage.

The petitioner claims that the respondent threatened to commit suicide on several occasions, which caused not only mental distress but also fear of potential harm to the petitioner and his family.

The petitioner has submitted that the respondent filed false complaints with the police on two separate occasions in 2018 (on 15.06.2018 and 01.07.2018), accusing the petitioner of various wrongdoings. Although these complaints were later withdrawn after a compromise, they caused NEUTRAL CITATION C/FA/74/2025 JUDGMENT DATED: 01/09/2025 undefined significant mental, physical, and financial harassment to the petitioner.

The petitioner has mentioned an incident on 01.07.2018 when the respondent and her father physically assaulted him. This physical abuse is alleged to have occurred in the presence of the respondent's family, with the respondent's actions being influenced by her family members.

The petitioner alleges that the respondent failed to perform her duties as a wife and mother. This included not preparing meals for the family, compelling the petitioner to bring food from outside, which adversely affected the health of both the petitioner and their children. Furthermore, the respondent allegedly scolded their children for trivial matters, which negatively impacted the children's well-being.

The petitioner alleges that the respondent demanded a large sum of Rs.80,00,000/- from him and threatened harm if her demands were not met. Additionally, the respondent is said destroyed household property in moments of anger, creating an abusive and hostile living environment.

23. Upon careful examination presented, including testimonies, documentary evidence, and the circumstances surrounding the allegations, it is apparent that the respondent's behavior, as described by the petitioner, constitutes acts of cruelty. The respondent's frequent disrespectful behavior, public humiliation, false allegations, threats of suicide, physical abuse, and emotional harassment are consistent with the definition of cruelty under Section 13(1)(ia) of the Hindu Marriage Act, 1955.

24. Furthermore, the petitioner has produced plausible evidence, which support his claim of mental and physical suffering caused by the respondent's actions. The respondent has not denied many of these incidents, lack and her counter-allegations sufficient substantiation. While the respondent claims that the petitioner was abusive towards her, the evidence provided by the petitioner outweighs the respondent's allegations."

NEUTRAL CITATION C/FA/74/2025 JUDGMENT DATED: 01/09/2025 undefined

6. As could be seen from the above, the Family Court has basically reiterated the allegations made by the husband and it has thereafter gone on to make general observations that the acts as described by the husband constituted cruelty. The Family Court has not recorded a clear finding, with reference

to the evidence adduced, as to which acts of the wife were established and whether those acts constituted as cruelty justifying the grant of divorce. A mere reiteration of the allegations and the generalization of the entire evidence and observations stating that it was admitted that the wife's behaviour constitutes cruelty cannot be sustained.

7. It is a settled law that the acts of cruelty should not only be pleaded but it should be established. A mere allegation or assertion would not by itself constitute proof of cruelty and it should be established with cogent evidence.

8. The Family Court has observed that the husband has produced "plausible evidence" which supported his claim of mental and physical suffering. In our view, this observation of the Family Court by itself indicates that there is complete non-application of mind with reference to the pleadings and the evidence and the Family Court has not recorded any finding regarding the establishment of any act of cruelty on the part of the wife. We are, NEUTRAL CITATION C/FA/74/2025 JUDGMENT DATED: 01/09/2025 undefined therefore, of the view that the impugned order cannot be sustained and since no finding is recorded, it would be appropriate to remand the matter to the Family Court for fresh consideration.

9. However, at this stage, we are constrained to take notice of the fact which established an improper conduct on the part of the husband.

10. The Family Court granted the husband a decree of divorce on 19.11.2024. The wife presented this appeal on 17.12.2024, i.e. within the period of limitation. By virtue of the provisions of Section 15 of the Hindu Marriage Act, it is obvious that husband could not have married for the second time merely because he has been granted a decree of divorce. In a matrimonial dispute, having regard to Section 15 of the Hindu Marriage Act 1, it is incumbent on the part of the husband to verify whether any appeal had been presented within the time and thereafter take a decision regarding marrying for the second time.

11. Learned counsel for the wife pointed out that it is not in dispute that the notice of this appeal was in fact served on the husband on 22.1.2025 and despite being aware about the appeal being filed by the wife, he nevertheless had proceeded to marry for the second time on 3.3.2025. In other words, the husband has flouted the Section 15 of the Hindu Marriage Act NEUTRAL CITATION C/FA/74/2025 JUDGMENT DATED: 01/09/2025 undefined mandate of Section 15 of the Hindu Marriage Act and despite being legally barred from marrying again has proceeded to marry for second time. This second marriage, therefore, is non est and this improper conduct of the husband has put the second wife also in jeopardy.

12. The husband has admitted this fact in the affidavit filed by him on 2.5.2025, in which he has stated as follows:

"3. I say and submit that I have remarried with Foramben Hasmukhbhai Patel, on 03/03/2025. I say and submit that said marriage is registered with marriage registrar on 04/03/2025. Copy of Marriage Registration Certificate and copy of some

of the photographs is annexed herewith and marked as "Annexure-III". I say and submit that I have two son Heet who was born on 18/11/2008, and son Jay who was born on 22/10/2015. I say and submit that Foramben had on daughter Heer born on 16/10/2014, and son Smit born on 01/01/2009, born out of earlier wedlock. All the four kids are now my responsibility."

13. It is, therefore, clear that the husband had contracted the second marriage even before he was legally entitled to do so and consequently, the said second marriage would be non est.

14. In view of the second marriage being non est, and since we are remanding the matter for fresh consideration, it would be necessary to direct the Family Court to implead Smt. Foramben Hasmukhbhai Patel, who got married to the respondent herein on 3.3.2025 during pendency of this appeal. The Family Court shall implead said Smt. Foramben Hasmukhbhai Patel as NEUTRAL CITATION C/FA/74/2025 JUDGMENT DATED: 01/09/2025 undefined second respondent and afford her an opportunity to have her say in the matter.

15. Till the consideration of the matter afresh by the Family Court, the amount of Rs.8 lacs which has been deposited towards permanent alimony by the husband as ordered by the Family Court, shall be invested in a fixed deposit and a decision on this amount shall be taken by the Family Court when it decides the matter afresh. It is made clear that adequacy of permanent alimony has not been examined or determined by us in this appeal.

16. It is made clear that if any order of maintenance is passed in favour of the wife in any proceeding, the same shall be complied with by the husband without fail. It made clear that the deposit of permanent alimony under the impugned order would not exempt the husband from paying maintenance.

17. The present First Appeal is ALLOWED to the aforesaid extent. Pending Civil Application also stands DISPOSED OF.

Sd/-

(A.Y. KOGJE, J) Sd/-

(NSSG,J) OMKAR